

GREEN EARTH FOUNDATION & ORS.

VERSUS

STATE OF UTTARAKHAND & ORS.

IN THE SUPREME COURT OF INDIA

Original Civil Jurisdiction

Writ Petition (Civil) No. 456 of 2023

With I.A. Nos. 892 of 2023 and 893 of 2023

JUDGMENT DATED: 15 MARCH 2024

Bench: Hon'ble Mr. Justice B.R. Gavai; Hon'ble Mr. Justice Surya Kant; Hon'ble Mr. Justice
J.B. Pardiwala

Academic Case File

CERTIFICATE AND DECLARATION

CERTIFICATE

This case file is an academic compilation of the supplied case material concerning Green Earth Foundation & Ors. v. State of Uttarakhand & Ors. It organizes the judgment into a conventional case-file format for study and presentation.

The document covers the factual background, submissions, issues, environmental-law principles, judicial reasoning, final directions and academic significance contained in the supplied material.

DECLARATION

This document is prepared for academic purposes. It is based on the case material supplied with the task and should not be treated as a substitute for the official court record or as legal advice.

ACKNOWLEDGEMENT AND CASE AT A GLANCE

ACKNOWLEDGEMENT

The supplied judgment provides a detailed environmental dispute concerning mining, deforestation and industrial pollution in the Doon Valley. This case file restructures that material into a longer academic document while retaining the terminology and conclusions of the supplied judgment.

CASE AT A GLANCE

Court: Supreme Court of India

Jurisdiction: Original Civil Jurisdiction

Petition: Writ Petition (Civil) No. 456 of 2023

Date: 15 March 2024

Petitioners: Green Earth Foundation & Ors.

Respondents: State of Uttarakhand & Ors.

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1. CASE IDENTIFICATION

CASE TITLE

Green Earth Foundation & Ors. v. State of Uttarakhand & Ors.

Court: Supreme Court of India

Jurisdiction: Original Civil Jurisdiction

Case Number: Writ Petition (Civil) No. 456 of 2023

Connected Applications: I.A. Nos. 892 of 2023 and 893 of 2023

Date of Judgment: 15 March 2024

Subject: Environmental protection, limestone mining, deforestation, industrial effluent discharge, Article 21 and environmental principles.

The petition was presented under Article 32 seeking urgent judicial intervention concerning environmental degradation in the Doon Valley, Uttarakhand.

2. FACTUAL BACKGROUND

BACKGROUND

The supplied material describes the Doon Valley as an ecologically fragile region, rich in biodiversity and home to several endangered species.

The petitioners alleged that 45 private mining leases had been renewed over a five-year period without mandatory fresh Environmental Impact Assessments. They also alleged rampant deforestation and severe industrial pollution.

Three major chemical manufacturing units located on the banks of the Song River were alleged to have discharged untreated toxic effluents directly into the river.

The State defended the mining renewals by referring to local employment and economic development, while the industries were stated to have been given opportunities to install Common Effluent Treatment Plants.

3. ENVIRONMENTAL CONCERNS

ECOLOGICAL CONTEXT

The dispute involved the interaction of mining activity, forest loss and water pollution within the same ecologically sensitive region.

The Amicus Curiae submitted that the ecological carrying capacity of the Doon Valley had been exceeded a decade earlier. The supplied judgment also refers to satellite imagery of deforested zones and environmental reports.

The petitioners sought not only cessation of harmful activities but also institutional assessment of ecological damage and restoration of the affected area.

The Court's eventual remedy therefore included preventive measures, regulatory conditions, monetary environmental compensation, institutional monitoring and afforestation.

4. MINING LEASES AND ENVIRONMENTAL IMPACT ASSESSMENTS

MINING DISPUTE

A principal issue was whether 45 mining leases could be renewed without fresh Environmental Impact Assessments.

The record, as summarized in the supplied judgment, showed that the State relied on EIAs conducted in 2015 when renewing leases in 2022.

The Court considered this legally unsustainable because ecological conditions in the Doon Valley had changed significantly. It held that a nine-year-old EIA could not form the basis for granting fresh permissions in the circumstances recorded.

The Court consequently held the renewal of the 45 leases arbitrary and illegal and ordered their suspension. Mining could not continue until a fresh comprehensive EIA was conducted and approved by the MoEFCC.

5. INDUSTRIAL EFFLUENT AND SONG RIVER

POLLUTION EVIDENCE

The petitioners relied upon independent water-quality testing conducted by the National Environmental Engineering Research Institute (NEERI) in January 2023.

The supplied material records BOD and COD levels in the Song River as 15 times higher than permissible limits. The water was described as highly toxic and unfit for human or agricultural use.

The Court treated the NEERI report as unrebutted by the industries and concluded that the river water was highly toxic.

The Court connected the environmental pollution with the right to life under Article 21 and held that the respondent industries were in violation of that right in its environmental dimension.

6. PETITIONERS' SUBMISSIONS

SUBMISSIONS FOR THE PETITIONERS

Precautionary Principle: The petitioners argued that lease renewals without fresh EIAs violated the principle requiring preventive measures where environmental degradation may occur. They relied on *Vellore Citizens Welfare Forum v. Union of India*.

Public Trust Doctrine: They argued that the State, as trustee of natural resources, had failed in its constitutional duty. They relied on *M.C. Mehta v. Kamal Nath*.

Polluter Pays: They argued that industries responsible for pollution should bear the costs of restoration and compensation, relying on *Indian Council for Enviro-Legal Action v. Union of India*.

Immediate relief: They sought suspension of mining and sealing of polluting industries because of the alleged irreversible nature of ecological damage.

7. RESPONDENTS' SUBMISSIONS

SUBMISSIONS FOR THE RESPONDENTS

Procedural compliance: The State relied on the Sustainable Sand Mining Management Guidelines, 2016 and described the delay in fresh EIAs as administrative backlog rather than mala fide intent.

Economic hardship: The Solicitor General submitted that immediate sealing of the three chemical plants could affect more than 5,000 direct and indirect jobs.

Regulatory action: The respondents pointed to CPCB show-cause notices and environmental compensation already levied under the environmental framework.

CETP plan: The industries had submitted a time-bound plan for installing Common Effluent Treatment Plants within 12 months.

8. ROLE OF THE AMICUS CURIAE

AMICUS CURIAE

Mr. K.K. Venugopal, learned Senior Counsel, assisted the Court as Amicus Curiae.

He submitted that the ecological carrying capacity of the Doon Valley had been exceeded a decade earlier.

He recommended an Independent High-Powered Committee involving experts from IIT Roorkee and the Wildlife Institute of India to undertake a comprehensive ecological audit.

The Court subsequently constituted a committee consisting of a retired High Court judge as Chairperson, two IIT Roorkee experts, one Wildlife Institute of India expert and a CPCB representative.

9. ISSUES BEFORE THE COURT

ISSUES FRAMED

Issue I: Whether renewal of 45 mining leases without fresh EIAs violates the Environment (Protection) Act, 1986 and Forest (Conservation) Act, 1980?

Issue II: Whether untreated toxic effluent discharge into the Song River violates Article 21 and the right to a clean environment?

Issue III: Whether Polluter Pays and Absolute Liability apply, and what should be the environmental compensation?

Issue IV: Whether the State breached the Public Trust Doctrine by failing to protect the Doon Valley?

Issue V: What remedial and punitive measures are appropriate to restore ecological balance?

10. LEGAL FRAMEWORK

CONSTITUTIONAL AND STATUTORY FRAMEWORK

The petition was filed under Article 32 of the Constitution of India. Article 21 became central because the Court considered a clean, healthy and pollution-free environment part of the right to life.

The supplied material refers to the Environment (Protection) Act, 1986; Forest (Conservation) Act, 1980; and Water (Prevention and Control of Pollution) Act, 1974.

The case also involved the MoEFCC, CPCB and NGT. The final directions assigned functions to these institutions concerning environmental approval, regulatory compliance and compensation.

The legal framework therefore combined constitutional rights, environmental legislation, regulatory institutions and judicially developed principles.

11. PRECAUTIONARY PRINCIPLE

PRECAUTIONARY PRINCIPLE

The petitioners relied on the Precautionary Principle to challenge renewal of mining leases without fresh EIAs.

Their submission was that lack of scientific certainty should not be used as a reason for postponing cost-effective measures to prevent environmental degradation.

Vellore Citizens Welfare Forum v. Union of India (1996) 5 SCC 647 was cited in support.

In applying the principle to the mining dispute, the Court emphasized the need for a current and comprehensive environmental assessment instead of continuing to rely upon the older 2015 EIA.

12. PUBLIC TRUST DOCTRINE

PUBLIC TRUST DOCTRINE

The petitioners argued that natural resources are held by the State in trust for the public.

The supplied judgment refers to *M.C. Mehta v. Kamal Nath* (1997) 1 SCC 388 in relation to the doctrine.

The Court concluded that the State had failed in its fiduciary duty by prioritizing short-term economic gains over long-term ecological security.

The Court therefore directed the State to take over management of the deforested zones and initiate a major afforestation drive.

13. POLLUTER PAYS PRINCIPLE

POLLUTER PAYS

The Polluter Pays Principle formed a central part of the petitioners' case and the Court's reasoning.

The supplied judgment explains that the principle extends beyond compensation to victims and includes the cost of restoring environmental degradation.

The Court rejected the argument that merely providing more time for CETP installation was sufficient in the circumstances of the established pollution.

The NGT was directed to assess environmental compensation of not less than Rs. 100 Crores from the three chemical manufacturing units.

14. ABSOLUTE LIABILITY

ABSOLUTE LIABILITY

The Court applied the Absolute Liability doctrine to the three chemical manufacturing units.

The judgment relies on *M.C. Mehta v. Union of India* (1987) 1 SCC 395 for the doctrine.

The Court held the three units absolutely liable and directed the NGT to assess compensation. The reasoning states that the industries had operated profitably while externalizing pollution costs onto the public.

The final directions required environmental compensation of not less than Rs. 100 Crores, with the NGT responsible for assessment and recovery.

15. ARTICLE 21 AND CLEAN ENVIRONMENT

ARTICLE 21

The Court held that the right to a clean, healthy and pollution-free environment is an inalienable part of the fundamental right to life under Article 21.

The supplied judgment cites *Subhash Kumar v. State of Bihar* (1991) 1 SCC 598 for the proposition that environmental pollution can constitute a violation of Article 21.

In this case, the toxic discharge into the Song River was treated as a direct threat to the health and livelihood of local communities.

The decision therefore places environmental protection within the constitutional framework of fundamental-rights protection.

16. JUDICIAL REASONING

COURT'S ANALYSIS

Mining: The Court found reliance on the 2015 EIA for the 2022 lease renewals legally unsustainable and suspended the 45 leases.

Pollution: The Court relied upon the NEERI report and treated the river pollution as a violation of Article 21.

Compensation: Polluter Pays and Absolute Liability were applied, with the NGT directed to assess compensation of at least Rs. 100 Crores.

State responsibility: The Court found a breach of the Public Trust Doctrine and ordered management and restoration of deforested zones.

Monitoring: A High-Powered Committee was constituted to monitor ecological restoration.

17. FINAL ORDER AND DIRECTIONS

FINAL ORDER

- 1.** All 45 limestone mining leases were suspended immediately. No mining activity could take place until a fresh comprehensive EIA was conducted and approved by the MoEFCC.
- 2.** The three defaulting chemical manufacturing units were directed to seal operations within 15 days and could not reopen until functional CETPs were installed and a CPCB No Objection Certificate obtained.
- 3.** The NGT was directed to assess and recover environmental compensation of not less than Rs. 100 Crores within six months.
- 4.** The Independent High-Powered Committee was constituted and funded by the State Government.
- 5.** The State was directed to plant at least 500,000 native saplings over two years.
- 6.** The order was to be transmitted to MoEFCC, CPCB and NGT for compliance.

18. SIGNIFICANCE AND ACADEMIC ANALYSIS

SIGNIFICANCE

The supplied judgment is significant as an integrated example of environmental constitutionalism. It combines Article 21 with environmental principles and concrete restoration measures.

The case demonstrates several forms of judicial relief: preventive restrictions on environmentally harmful activity, regulatory conditions, environmental compensation, institutional monitoring and physical restoration.

It also illustrates the tension presented in the submissions between environmental protection and economic interests such as employment and industrial continuity.

From an academic perspective, the case can be used to explain how the Precautionary Principle, Public Trust Doctrine, Polluter Pays Principle and Absolute Liability can operate together in environmental adjudication.

19. CONCLUSION AND KEY TAKEAWAYS

CONCLUSION

The case concerns alleged mining-related degradation, deforestation and industrial pollution in the ecologically fragile Doon Valley.

The Court held that the 45 mining leases could not continue on the basis of the older EIA, treated the industrial pollution as a violation of Article 21, applied Polluter Pays and Absolute Liability, and found a breach of the Public Trust Doctrine.

The final directions combined immediate restrictions with long-term ecological restoration, including environmental compensation, a High-Powered Committee and large-scale afforestation.

KEY TAKEAWAYS

Fresh environmental assessment; Article 21 and clean environment; Precautionary Principle; Public Trust Doctrine; Polluter Pays; Absolute Liability; NGT compensation; regulatory compliance; ecological restoration.

20. AUTHORITIES AND SOURCE NOTE

IMPORTANT AUTHORITIES REFERRED TO

Vellore Citizens Welfare Forum v. Union of India (1996) 5 SCC 647 — cited for the Precautionary Principle and Polluter Pays Principle.

M.C. Mehta v. Kamal Nath (1997) 1 SCC 388 — cited in relation to the Public Trust Doctrine.

Indian Council for Enviro-Legal Action v. Union of India (1996) 3 SCC 212 — cited for the Polluter Pays Principle.

M.C. Mehta v. Union of India (1987) 1 SCC 395 — cited for Absolute Liability.

Subhash Kumar v. State of Bihar (1991) 1 SCC 598 — cited concerning environmental pollution and Article 21.

SOURCE NOTE

This PDF is based on the uploaded case material titled Green Earth Foundation & Ors. v. State of Uttarakhand & Ors., Writ Petition (Civil) No. 456 of 2023, dated 15 March 2024. The supplied material contains the factual allegations, submissions, issues, judicial reasoning and final directions used in this case file.